Program Name: OI Promo % to LB

Program ID : PRG-1043010

Distributor: SYGMA DENVER
4895 GENEVA ST
DENVER CO 80238-2403

Broker : NONE

Approval Date: 12/11/2018

Effective Dates: December 1, 2018 through December 1, 2018

Price Type: Fixed Price, Rebate

SYGMA DENVER,

We are pleased to confirm pricing information for orders placed between December 1, 2018 and December 1, 2018. During this time period, product sold to SYGMA DENVER will receive the fixed price, rebate type price to SYGMA DENVER for the product(s) found in the pricing table (showing prices and rates).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Beth Gillis

Tyson Q41 Representative

PRG-1043010 - Fixed Price

Product#	Product Description	OI Promo Fixed Price - DEL Pays To: Distributor
10000019322	BP HD BF FRK 8CT 1215OZ	$23.00 / LBS
10000026029	BP HD PRM BF BUNSZ 14CT 1237OZ COSTCO	$23.00 / LBS

PRG-1043010 - Rebate

Product#	Product Description	OI Promo Discount Pays To: Distributor
Product		
10002070339	65 CKN TH	$0.10 / LBS
10002070928	65 CKN TH	$0.10 / LBS

I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.

II. Supporting Documentation is required for all Allowance requests:

> Distributor Name with company location and Contract Number
> Tyson contract number
> Shipment dates for each sales transaction
> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
> Tyson product code number or GTIN number
> Description of product item pack, size, item brand & UOM
> Total cases purchased
> Requested case rates per product and total rebate dollar amount per product

III. Tyson reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time.

IV. Acceptance of a rebate on any portion of this program from Tyson, in writing, by purchase of any of the products identified, or by submission of a claim, constitutes acceptance of this program in its entirety, and voids participation in any other Tyson program.

V. No other Tyson programs apply to this operator and any prior programs or contracts are superseded and terminated.

VI. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

VII. Estimated volume represents one of the considerations for the rebates offered. Future adjustments to the rebate amounts may be based on the actual volumes purchased.

VIII. All purchases made under this contract are also subject to Tyson standard invoice terms and conditions of sale.

PAYMENT CALCULATION & SETTLEMENT

I. Tyson will review claims submissions for errors. Tyson may approve or deny submissions in its reasonable discretion.

II. Rebates of a specified dollar amount must be claimed from Tyson at the specified dollar amount regardless of the invoice price.

III. The calculation of Rebate percentage billbacks will be determined by multiplying the Rebate percentage by the customer invoice price.

IV. Fixed price or deviated price billbacks are calculated by subtracting the deviated price from the price defined on the Tyson published price list.

V. Tyson will allow distributor deviated rebates to be administered by distributor(s) only if authorized in writing by the operator. Operator rebates must be paid directly to the operator and will not be deviated through the distributor.

VI. The rebates identified are only available to the operators listed. Tyson reserves the right to deny payment of any claim for any purchases made by customers/operators who are not eligible for these rebates. These rebates are considered confidential information to be shared only with the parties listed in this agreement.

VII. Tyson will not honor rebate claims for any product that is resold or delivered past its shelf life or expiration date.

VIII. Rebates are paid on full cases only. Partial cases are not eligible for rebates and will be disallowed.

CLAIM SUBMISSION

I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.

II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.

III. Please include the Contract ID # in all communications.

IV. Billback claims sent via email should be directed to the following address:

tysonclaims@blacksmithapps.com

Paper claims should be mailed to:

Tyson – Claims Processing

P. O. Box 15887

Pittsburgh, PA 15244

V. Subject to any provision to the contrary of these terms, Tyson will only pay claims for eligible goods sold within 365 days of the submitted date.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers.